



Arms Control and Disarmament (Privileges and Immunities) Act 1988

1988 CHAPTER 2

An Act to provide for conferring privileges and immunities on observers, inspectors and auxiliary personnel exercising functions under international agreements or arrangements for furthering arms control or disarmament. [9th February 1988]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Diplomatic Privileges Act 1964 shall have effect as if in Schedule 1 to that Act—

- (a) references to a diplomatic agent included references to any person designated by a State other than the United Kingdom as an observer or inspector under the Stockholm Document; and
- (b) references to the members of the administrative and technical staff, or of the service staff, of a mission included references to persons designated as aforesaid as auxiliary personnel for an inspection carried out under that document and performing administrative and technical or, as the case may be, domestic services.

Privileges and immunities for observers, inspectors etc. 1964 c. 81.

(2) Her Majesty may by Order in Council confer such privileges and immunities (not exceeding those conferred by the said Act of 1964) as appear to Her Majesty to be required for giving effect to any provision of an international agreement or arrangement superseding the Stockholm Document or otherwise making provision for furthering arms control or disarmament; but no such Order shall be made unless a draft of it has been laid before and approved by a resolution of each House of Parliament.

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(3) If in any proceedings any question arises whether or not any person is entitled to any privilege or immunity by virtue of this Act a certificate issued by or under the authority of the Secretary of State stating any fact relating to that question shall be conclusive evidence of that fact.

(4) In this section "the Stockholm Document" means the document dated 19th September 1986 and concluded at the Stockholm Conference on confidence and security building measures and disarmament in Europe.

Short title and
extent.

2.—(1) This Act may be cited as the Arms Control and Disarmament (Privileges and Immunities) Act 1988.

(2) This Act extends to Northern Ireland.

(3) Her Majesty may by Order in Council provide for this Act to extend, with such modifications as may be specified in the Order, to any of the Channel Islands, the Isle of Man or any colony.